

24STCV13689 24STCV13689

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Case Number: 24STCV13689 Hearing Date: June 29, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

29, 2026 TRIAL

DATE: November 15, 2027

CASE: Samantha Brustin v. Petrol Advertising, Inc., et al.

CASE NO.: 24STCV13689

ORDER TO SHOW CAUSE RE: RE

CONTEMPT FOR DEFENDANT'S WILLFUL DISOBEDIENCE OF THE PROTECTIVE ORDER ENTERED

BY THE COURT ON JULY 28, 2025

ORDER

TO SHOW CAUSE RE: RE MANDATORY INTERNET SWEEP

ORDER

TO SHOW CAUSE RE: RE WHETHER DEFENDANT'S COUNSEL MUST CREATE CLE HIPAA COMPLIANCE

VIDEO

I. BACKGROUND

Plaintiff

Samantha Brustin ("Brustin" or "Plaintiff") brings this employment action against her former employers, defendants Petrol Advertising, Inc. ("Petrol")

and Enad Global 7 AB (PUBL) ("EG7") (collectively, "Defendants"). Brustin worked for Defendants from November 2022 until she was terminated in April 2024.

Brustin alleges that, during her employment, she was subjected to sexual harassment, a hostile work environment, and retaliation for taking CFRA leave. Plaintiff was terminated a month after she returned from medical leave.

On

June 2, 2026, Plaintiff filed an ex parte application for an order (1) sealing portions of the documents filed by Petrol on May 27 and 28, 2026; (2) issuing an Order to Show Cause (OSC) Re Contempt for Defendant's willful disobedience of the protective order entered by the court on July 28, 2025; (3) issuing an OSC Re Mandatory Internet Sweep to immediately contact all online legal databases and docket aggregators (including but not limited to Trellis, Law360, Lexis, and Westlaw) and make reasonable, documented efforts to contact all known online legal databases and docket aggregators, including Trellis, Law360, Lexis, and Westlaw, and request removal, suppression, or replacement of any scraped public versions of the confidential medical filings pursuant to Code of Civil Procedure section 128 at the sole expense of Defendant and their counsel of record; (4) issuing an OSC Re whether Jackson Lewis, P.C. and Henry Sanchez, Esq., within ninety days of the Court's order, must create, produce, and have Mr. Sanchez star in a one-hour Continuing Legal Education video focused on HIPAA compliance and the protection of third-party privacy rights for this Court's review and approval, and shall subsequently file a declaration under penalty of perjury within six months from the video's completion date confirming that all attorneys employed by Jackson Lewis P.C. have watched the video in its entirety; and (5) for other such relief as the Court deems just, necessary, and proper.

On June 4, 2026, the court granted in part the ex parte application and ordered stricken Petrol's oppositions and supporting materials filed on May 27 and 28, 2026 and directed Petrol to re-file those documents consistent with the procedures outlined in the Protective Order. The court also set the following OSCs:

1. OSC Re Contempt for Defendant's willful disobedience of the protective order entered by the court on July 28, 2025;

2. OSC Re Mandatory Internet Sweep

3. OSC Re Whether Defendant's Counsel Must Create CLE
HIPAA Compliance Video.

The court also ordered Defense Counsel to file a
declaration addressing the above OSCs.

On June 12, 2026, Defense counsel filed declarations.

II. DISCUSSION

As directed by the court, Defense counsel filed declarations
in response to the OSCs. Defense counsel

Andrea L. Steffan states, in pertinent part, that she drafted Petrol's May 27
and 28, 2026 filings and included copies of Plaintiff's psychiatric treatment
records as Exhibit I to those filings.

(Steffan Decl., ¶¶ 3-4.) Exhibit

I is subject to the July 26, 2025 Protective Order. (Steffan Decl., ¶ 6.) Ms. Steffan goes on to state that Petrol
relied on Exhibit I in opposing several arguments raised by Plaintiff's motions
to quash subpoenas, and critically, Ms. Steffan's failure to file the records
under seal was inadvertent and unintentional.

(Steffan Decl., ¶¶ 4-5, 7.) Ms.

Steffan also points out that Plaintiff did not meet and confer regarding Exhibit
I or the content of Defendant's opposition moving papers prior to filing an ex
parte application. (Steffan Decl., ¶ 8.)

Defense counsel Henry L. Sanchez also submitted a
declaration. Mr. Sanchez states he

reviewed the memorandum of points and authorities in support of Petrol's May 27
and 28, 2026 filings but did not realize Ms. Steffan intended to file a copy of

Plaintiff's psychiatric treatment records as Exhibit I to his declarations. (Sanchez Decl., ¶ 3.) Mr. Sanchez continues, "Absent
this

oversight, I would have instructed my associate to file the exhibits under seal
as required by the July 26, 2025, Protective Order. I did not set out to file
the exhibits at issue in willful

disregard of the Court's adopted protective order. I have
never disregarded a Court ordered protective order in the past and absent this

oversight, I would have had the exhibits at issue filed under seal as required. Indeed, I agreed with the language of the protective order initially, so it belies all sense of logic that I would intentionally and willfully seek to violate the protective order I helped to create." (Sanchez Decl., ¶ 4.) Mr. Sanchez also points out Plaintiff's failure to meet and confer regarding Exhibit I or the content of Petrol's oppositions. (Sanchez Decl., ¶ 5.)

After

consideration of the foregoing statements, declared under penalty of perjury, the court is satisfied that Defense counsel's failure to observe the terms of the Protective Order was not willful. The court also observes that, on June 4, 2026, Petrol promptly refiled its oppositions in redacted form. For these reasons, the court will not hold Defense Counsel in contempt nor require Defense Counsel to create a CLE HIPAA compliance video.

However,

Plaintiff's psychiatric records contain Plaintiff's private information. Those records are subject to the Protective Order. Defense counsel admit having publicly filed the records in direct violation of the Protective Order. Given the foregoing, the court is inclined to require Defense Counsel to conduct a mandatory internet sweep as described in the OSC and at Defense Counsel's expense. The court is also inclined to impose a monetary sanction.

III. CONCLUSION

The court will hear from the parties regarding the OSC Re: Mandatory Internet Sweep and potential monetary sanctions at the hearing.

The OSC Re Contempt for Defendant's willful disobedience of the protective order entered by the court on July 28, 2025 and OSC Re Whether Defendant's Counsel Must Create CLE HIPAA Compliance Video are DISCHARGED.

Dated: June 29, 2026

Brock T. Hammond

Judge of the Superior Court